

HOUSE No. 1911

The Commonwealth of Massachusetts

PRESENTED BY:

Brian W. Murray

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act clarifying a right of a durable power of attorney.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/14/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>2/6/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>1/28/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/29/2025</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>1/31/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>11/19/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/3/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>2/3/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/10/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>

HOUSE No. 1911

By Representative Murray of Milford, a petition (accompanied by bill, House, No. 1911) of Brian W. Murray and others for legislation to further regulate rights of a durable power of attorney. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act clarifying a right of a durable power of attorney.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 103 of chapter 203E of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended to insert after the definition of “charitable trust”, the
3 following definition:- ““Durable power of attorney”, the means by which a principal shall
4 designate another as the principal’s attorney in fact in writing in the manner described in section
5 5-501 of chapter 190B.”

6 SECTION 2. Said section 103 of said chapter 203E is hereby further amended by adding
7 after the definition of “settlor”, the following definition:- ““Settlor’s agent”, a person acting on
8 behalf of a settlor, as an agent acting pursuant to a durable power of attorney, expressly
9 authorizing the agent to create a trust on the settlor’s behalf ; provided, said agent’s actions
10 accord with sections 5-501 to 5-507, inclusive, of chapter 190B. A settlor’s agent shall also
11 include a person appointed by a court of competent jurisdiction to act on behalf of the settlor in
12 the creation of a trust using one or more methods described in section 401.”

13 SECTION 3. Section 401 of said chapter 203E is hereby amended in subsection (1) by
14 inserting after the word “property” the following words:- “by the settlor or the settlor’s agent”.

15 SECTION 4. Section 402 of said chapter 203E is hereby amended to insert in subsection
16 (a)(1), after the word “settlor”, the following words:- “or the settlor’s agent”.

17 SECTION 5. Said section 402 of said chapter 203E is hereby further amended by
18 inserting in subsection (a)(2) after the word “settlor” the following words:- “or the settlor’s
19 agent”.